PruneYard Shopping Center v. *Robins*, 447 U. S. 74 (1980), this Court held that the availability of an effective disclaimer was sufficient to eliminate any infringement upon negative free speech rights. *Id.*, at 87–88. If an alternative forum of communication exists, TURN or the other consumer groups will be able to *induce* PG&E to address the additional topics anyway. Finally, because PG&E retains complete editorial freedom over the content of its inserts, the effect of the right of access is likely to be qualitatively different from a direct prescription by the government of "what shall be orthodox in . . . matters of opinion." *West Virginia Board of Education* v. *Barnette*, 319 U. S., at 642.

There is, however, a more fundamental flaw in the plurality's analysis. This Court has recognized that natural persons enjoy negative free speech rights because of their interest in self-expression; an individual's right not to speak or to associate with the speech of others is a component of the broader constitutional interest of natural persons in freedom of conscience. Thus, in *Barnette*, *supra*, this Court struck down a compulsory flag salute statute to protect "the sphere of intellect and spirit which it is the purpose of the First Amendment to our Constitution to reserve from all official control." *Id.*, at 642. Similarly, in *Wooley* v. *Maynard*, 430 U. S. 705 (1977), the Court invalidated a statute requiring an official slogan to be displayed on all license plates to protect the individual interest in "freedom of mind." *Id.*, at 714. See also *Abood* v. *Detroit Board of Education*, 431 U. S. 209, 234–235 (1977). Most recently, in *Harper & Row Publishers, Inc.* v. *Nation Enterprises*, 471 U. S. 524 (1985), this Court rejected a public figure exception to the copyright law, reasoning that the protection of an author's profit incentive furthers rather than inhibits expression, *id.*, at 555–559, and that an author has a countervailing First Amendment interest in "*freedom of thought* and expression [that] 'includes both the right to speak freely and the right to refrain from

speaking at all.'" *Id.*, at 559 (emphasis added), quoting *Wooley* v. *Maynard*, *supra*, at 714.

In *Miami Herald Publishing Co.* v. *Tornillo*, 418 U. S. 241 (1974), the Court extended negative free speech rights to newspapers without much discussion. The Court stated that the right-of-reply statute not only deterred affirmative speech, but also "fail[ed] to clear the barriers of the First Amendment because of its intrusion into the function of editors." *Id.*, at 258. The Court explained that interference with "the exercise of editorial control and judgment" creates a peril for the liberty of the press like government control over "'what is to go into a newspaper.'" *Ibid.*, and n. 24, quoting 2 Z. Chafee, Government and Mass Communications 633 (1947). The Court did not elaborate further on the justification for its holding.

Extension of the individual freedom of conscience decisions to business corporations strains the rationale of those cases beyond the breaking point. To ascribe to such artificial entities an "intellect" or "mind" for freedom of conscience purposes is to confuse metaphor with reality. Corporations generally have not played the historic role of newspapers as conveyers of individual ideas and opinion. In extending positive free speech rights to corporations, this Court drew a distinction between the First Amendment rights of corporations and those of natural persons. See *First National Bank of Boston* v. *Bellotti*, 435 U. S., at 776; *Consolidated Edison Co.* v. *Public Service Comm'n of N. Y.*, 447 U. S. 530, 534–535, and n. 2 (1980). It recognized that corporate free speech rights do not arise because corporations, like individuals, have any interest in self-expression. See *Bellotti*, *supra*, at 777, and n. 12; *Consolidated Edison*, *supra*, at 534, n. 2. It held instead that such rights are recognized as an instrumental means of furthering the First Amendment purpose of fostering a broad forum of information to facilitate self-government. See *Bellotti*, *supra*, at 783; *Consolidated Edison*, *supra*, at 533.

The interest in remaining isolated from the expressive activity of others, and in declining to communicate at all, is for the most part divorced from this "broad public forum" purpose of the First Amendment. The right of access here constitutes an effort to facilitate and enlarge public discussion; it therefore furthers rather than abridges First Amendment values. See *Harper & Row Publishers, Inc.* v. *Nation Enterprises*, *supra*, at 558; *Buckley* v. *Valeo*, 424 U. S., at 92–93. In *Zauderer* v. *Office of Disciplinary Counsel*, 471 U. S. 626 (1985), this Court held that "[b]ecause the extension of First Amendment protection to commercial speech is justified principally by the value to consumers of the information such speech provides, . . . [the] constitutionally protected interest in *not* providing any particular factual information in [a business'] advertising is minimal." *Id.*, at 651 (citation omitted). Likewise, because the interest on which the constitutional protection of corporate speech rests is the societal interest in receiving information and ideas, the constitutional interest of a corporation in not permitting the presentation of other distinct views clearly identified as those of the speaker is *de minimis*. This is especially true in the case of PG&E, which is after all a regulated public utility. Any claim it may have had to a sphere of corporate autonomy was largely surrendered to extensive regulatory authority when it was granted legal monopoly status.

This argument is bolstered by the fact that the two constitutional liberties most closely analogous to the right to refrain from speaking—the Fifth Amendment right to remain silent and the constitutional right of privacy—have been denied to corporations based on their corporate status. The Court in *Bellotti* recognized that some "'purely personal' guarantees . . . are unavailable to corporations and other organizations," 435 U. S., at 779, n. 14, and therefore declined to hold that "corporations have the full measure of

rights that individuals enjoy under the First Amendment." *Id.*, at 777.[3]

III

PG&E is not an individual or a newspaper publisher; it is a regulated utility. The insistence on treating identically for constitutional purposes entities that are demonstrably different is as great a jurisprudential sin as treating differently those entities which are the same. Because I think this case is governed by *PruneYard*, and not by *Tornillo* or *Wooley*, I would affirm the judgment of the Supreme Court of California.

JUSTICE STEVENS, dissenting.

Because the plurality opinion is largely concerned with questions that need not be answered in order to decide this case,[1] I believe it is important to identify the actual issue with some care. The narrow question we must address is whether a state public utility commission may require the fundraising solicitation of a consumer advocacy group to be carried in a utility billing envelope. Since the utility concedes that *it* has no right to use the extra space in the billing envelope for its own newsletter, the question is limited to whether the Commission's requirement that it be the courier

[3] The extension of negative free speech rights to corporations would cast doubt upon the result in *Red Lion Broadcasting Co.* v. *FCC*, 395 U. S. 367 (1969), as well as the suggestion in *Hudgens* v. *NLRB*, 424 U. S. 507 (1976), that the Federal Government may grant employees a right of access to employer property for the purpose of picketing, even though the First Amendment does not guarantee such access. *Id.*, at 521–523.

[1] For the plurality, the question in this case is whether a public utility commission "may require a privately owned utility company to include in its billing envelopes speech of a third party with which the utility disagrees." *Ante*, at 4. The plurality seems concerned that the California Public Utilities Commission's decision may be the harbinger of future decisions requiring publicly regulated institutions to bear banners antithetical to their own self-interest. Henceforth, a company's buildings and vehicles might display signs and stickers proclaiming the benefits of conservation, lower rates, and perhaps even government ownership. See *ante*, at 6–7, n. 4.